

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: JENNIFER BURTIS	}	
License No. 097.0068853	}	Docket No. 2015-378
	}	

Appearances:

Prosecutor: Rachael Allen, Esq.

Respondent: Did not appear

Hearing Officer: George K. Belcher

DEFAULT ORDER

The Hearing Officer of the Vermont Board of Allied Mental Health Practitioners held a hearing pursuant to 3 VSA Sec. 129(f) in the above matter on May 31, 2016 at the Office of Professional Regulation in Montpelier, Vermont. Respondent did not attend and was not represented by counsel.

Findings of Fact

1. Respondent is registered as a non-licensed and non-certified psychotherapist under a registration issued on or about June 29, 2010 and set to expire on or about November 30, 2016. She is therefore subject to the regulatory authority of this Board. 3 V.S.A. §§ 129, 129a, 26 V.S.A. Chapter 78, and the Administrative Rules of the Board, and the Rules of the Office of Professional Regulation. The Charges in this matter relate to receiving a regulated drug from multiple providers without full disclosure to those providers.
2. Charges were filed in this matter on March 11, 2016. On March 11, 2016, the Respondent was sent a Notice of Charges in this matter by certified mail and first class mail to the address on her application. A copy of the Specification of Charges is attached to this Default Order.
3. OPR Rule 3.3 requires that an Answer be filed within 20 days of the date on which the notice of charges was mailed by the Director.
4. The return receipt to the mailing of the Charges was returned signed by the Respondent but the date of receipt was not noted. The regular mail notice of the charges was not returned to the Office of Professional Regulation. An answer from the Respondent should have been filed on or before April 1, 2016. No answer was filed within that time period.
5. On April 19, 2016 a notice was sent to the Respondent advising her of the hearing to find her in default and advising her that, "If you wish to contest the charges you must contact the office immediately at (802) 828-2367 and show good cause for failing to answer the

charges against you.” This notice was mailed by certified mail and by regular mail. The certified mail receipt was returned to the Office of Professional Regulation showing the receipt of this notice by the Respondent on May 7, 2016.

6. On April 27, 2016 the Respondent filed an answer with the Office of Professional Regulation. This “answer” was not only filed out of time, but the answer did not address the allegations. None of the charges were admitted or denied. Her answer did indicate that upon advice of counsel the Respondent “hereby offer up my 5th amendment rights per my attorney’s advice”.
7. On May 23, 2016 the Respondent wrote an e-mail to the docket clerk requesting a continuance of the May 31, 2016 default hearing due to “an acute health issue. I have a gall bladder condition which will require me to have an endoscopy at Dartmouth in the near future.” (See email of 5/23/16)
8. The requested continuance was denied on May 24, 2016, in part, because there were no specifics given as to when the hospital procedure would occur, nor any 3rd party verification of the medical condition. The continuance was denied, but allowed the Respondent to participate in the hearing on default by telephone.
9. At the default hearing the Respondent did not appear. She did leave with the Office of Professional Regulation a telephone number at which she could be reached. When that telephone number was called, the answerer indicated that the Respondent could not speak on the phone because she was “in group”.
10. After the default hearing was concluded, the hearing officer was given a fax which was delivered to OPR at 8:44 on May 31, 2016 from Wendy Baxter, LCMHC, at the Brattleboro Retreat indicating that the Respondent had been admitted to the Brattleboro Retreat on May 28, 2016 and that she would be unable to “attend” the hearing on May 31, 2016 at 10:00 AM.
11. Respondent has not filed a substantive answer to the charges within the time period required by the rules. See Administrative Rules for the Office of Professional Regulation Rule 3.3 describing what an answer must include. Even if the “answer” she filed were considered to be an answer, the document raises no factual or legal issues which would be required to be resolved by hearing. Her answer did not deny any of the charges. Upon consideration of the Prosecution’s presentation and taking notice of the OPR file, the Hearing Officer of the Board finds Respondent to be in Default. The allegations contained in the Specification of Charges are therefore treated as the facts on which the Board may issue an order of professional discipline. OPR Rule 3.4, 3 V.S.A. § 809(d), and 3 V.S.A. § 814(c).

Conclusions of Law

Respondent has received adequate or constructive notice of the charges in this matter as indicated by the Board’s file and the Prosecution’s presentation. Because Respondent has failed to timely answer the charges, the factual allegations in the Specification of Charges are treated as if proved. O.P.R. Rule 3.3 and 3.4. Accordingly, the Board finds, based up the finding of

Default from this Default Hearing held pursuant to 3 V.S.A. §809(d), that Respondent has engaged in the unprofessional conduct alleged in the Specification of Charges (conduct which evidences unfitness to practice clinical mental health counseling and failure to comply with provisions of federal or state statutes).

Proposed Order

In accordance with the above Findings of Fact and Conclusions of Law, the Board finds the Respondent to have defaulted the charges and does INDEFINITELY SUSPEND the registration of the Respondent pursuant to 3 VSA Sec. 129(a)(4) effective as of the date of entry of the Order of the Board.

Appeal Rights

This is a final administrative determination by the Vermont Board of Allied Mental Health Practitioners. A party aggrieved by a final decision of a board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, 89 Main St., Fl. 3, Montpelier, VT 05620-3402 within 30 days of the entry of this Order. If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a.

The Hearing Officer reports the above facts, conclusions of law, and the finding of DEFAULT to the Board with the recommendation that the Board approve them and enter the Order as above.

Dated this 2nd day of June, 2016.



George K. Belcher
Hearing Officer of the Vermont Board of Nursing

ORDER OF THE BOARD

The Vermont Board of Allied Mental Health Practitioners considered the report of findings of fact and conclusions of law at its meeting on 6/16/16. After considering the report, the Board takes the following action:

- / / Rejects the report and schedules the matter for hearing.
- / / Schedules the matter for additional evidence.
- / / Accepts the report, adopts the findings of fact and conclusions of law, and orders the recommended discipline as set forth above.

SO ORDERED.

Vermont Board of Allied Mental Health Practitioners

By: Tammy Austin Date: June 16, 2016
Tammy Austin, Chair
Vermont Board of Allied Mental Health Practitioners

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY: 6/16/16

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Jennifer Burtis) **Docket No. 2015-378**
License No. 097.0068853)

SPECIFICATION OF CHARGES

NOW COMES, the State of Vermont and makes the following Charges against the Respondent, Jennifer Burtis:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (Board) has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by non-licensed and non-certified psychotherapists pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65; the Administrative Rules for the Board of Allied Mental Health Practitioners; and the Rules of the Vermont Office of Professional Regulation.

Statement of Facts

2. Jennifer Burtis (Respondent) of Brattleboro, Vermont, is registered by the State of Vermont as a non-licensed and non-certified psychotherapist under registration number 097.0068853. This registration number was originally issued on or about June 29, 2010, and expires on or about November 30, 2016.
3. At all times relevant, Respondent was employed at Grace Cottage Hospital (Facility), as a mental health counselor located in Townsend, Vermont. Respondent was also a patient of the Facility.

I. Statement of Facts re: Treatment from N.A.

4. On or about July 3, 2015, N.A., a medical provider who is employed at the Facility, prescribed Respondent fifty-six (56) 1mg tablets of Clonazepam. This was to be a twenty-eight (28) day supply of medication for Respondent. This prescription was filled by a Walgreen's pharmacy in Greenfield, Massachusetts, on the same day, July 3, 2015.
5. Respondent did not disclose to N.A. that she was also being treated by another physician and already had an active prescription for this regulated drug.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

6. On or about July 31, 2015, N.A. again prescribed .5mg tablets of Clonazepam for Respondent to be taken three (3) times a day. This prescription was written as a short-term bridge prescription to last until August 5, 2015. Respondent told N.A. that she either lost or left the July 3, 2015 prescribed Clonazepam in Massachusetts and no longer had the medication.
7. On or about August 6, 2015, E.S., the Clinical Manager of the Facility, received a call from Walgreen's pharmacy in Greenfield, Massachusetts. Walgreen's pharmacy reported that Respondent was receiving Clonazepam from multiple prescribers. The pharmacy did not fill Respondent's July 31, 2015 prescription written by N.A.

II. Statement of Facts re: Treatment from P.P.

8. The Vermont Prescription Monitoring System (VPMS) states that Respondent was receiving Clonazepam and Suboxone from P.P., a medical provider in Wilmington, Vermont. Respondent filled the Clonazepam prescriptions written by P.P. at The Hotel Pharmacy, Inc., on the following dates: 11/18/14, 12/17/14, 1/14/15, 2/2/15, 2/10/15, 2/18/15, 2/25/15, 3/11/15, 3/25/15, 4/7/15, 4/21/15, 5/6/15, 5/18/15, 6/1/15, 6/7/15, 6/12/15, 6/17/15, 6/22/15, 6/24/15, 7/2/15, 7/6/15, 7/14/15, 7/20/15, 8/4/15, 8/17/15, 8/22/15, 8/24/15, 9/2/15, 9/9/15, 9/16/15, 9/21/15, 9/23/15, 9/30/15, 10/7/15, and 10/8/15.
9. Respondent did not disclose to P.P. that she was being treated by another physician and already had an active prescription for this regulated drug.

III. Statement of Facts re: Treatment from N.K.

10. The VPMS also shows that Respondent was receiving Clonazepam from N.K., a medical provider in Wallingford, Vermont. N.K. prescribed Respondent 2mg tablets of Clonazepam on August 27, 2015. Respondent filled this prescription at The Hotel Pharmacy, Inc., on August 28, 2015.

IV. Statement of Facts re: Treatment from J.Z.

11. Massachusetts prescription records state that J.Z., a medical provider in Amherst, Massachusetts, prescribed Respondent 1 mg of Clonazepam. Respondent filled these prescriptions at a Stop & Shop pharmacy in Greenfield, Massachusetts, on the following dates: 12/26/14, 1/27/2015, 3/2/15, 3/23/15, and 4/29/15.
12. Respondent did not disclose to J.Z. that she was already being treated by another physician and already had an active prescription for this regulated drug.
13. On or about December 10, 2015, Respondent was interviewed by Investigator Dennis Menard for the Office of Professional Regulation. Respondent admitted to receiving Klonopin from more than one provider at the same time.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

14. On or about December 10, 2015, Respondent was issued a citation for the crime of Possession and Control of Regulated Drugs, Fraud or Deceit, in violation of 18 V.S.A. § 4223(h).

Charges

15. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of:
- a. 3 V.S.A. § 129a(b)(1) and (2) (Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (1) performance of unsafe or unacceptable patient or client care; or (2) failure to conform to the essential standards of acceptable and prevailing practice);
 - b. 3 V.S.A. § 129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession); and
 - c. 26 V.S.A. § 3271(a)(3) (Conduct which evidences unfitness to practice clinical mental health counseling).

Relief Requested

WHEREFORE, the registration of Jennifer Burtis should be revoked, suspended, reprimanded, conditioned, or otherwise disciplined.

DATED at Montpelier, Vermont this 11th day of March, 2016.

STATE OF VERMONT
SECRETARY OF STATE

By 
Rachel Allen
State Prosecuting Attorney

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402